

Court No. - 21

Case :- WRIT - C No. - 10550 of 2023

Petitioner :- Vijay

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rateesh Singh, Sourabh Pathak

Counsel for Respondent :- C.S.C., Alok Mishra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Umesh Chandra Sharma, J.

Sri Alok Mishra, learned counsel for the respondent Electricity Department, prays for and is granted time to obtain instructions.

List as fresh on 5.4.2023.

(Umesh Chandra Sharma, J.) (Manoj Kumar Gupta, J.)

Order Date :- 31.3.2023

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Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The petitioner has challenged the demand notice dated 29/11/2022 issued by respondent No.3 for recovery of a sum of Rs.6,08,052/- and other charges and not to take any coercive action against the petitioner on the basis of said demand notice.

Sri Alok Mishra, learned counsel appearing for the Electricity Department state that the impugned demand notice has been issued without deciding the objections filed by the petitioner against the notice of the provisional assessment. He states that respondent No.3 will decide the objections and will not press with the recovery.

In view of the admitted fact that the demand notice has been issued without there being any order of final assessment in existence, we quash the same and permit the respondents to pass order of final assessment in accordance with the procedure provided under the U.P. Electricity Supply Code, 2005.

The petition stands disposed of accordingly.

Order Date :- 5.4.2023

skv

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)